



COMMERCIAL SERVICES AGREEMENT

Application Development, Hosting & Support Services

This Commercial Services Agreement ("Agreement") is made and entered into as of [Effective Date] ("Effective Date"), by and between:

Kynvera, a company with its registered office at [Company Address], United Arab Emirates (the "Company" or "Service Provider"); and

[Client Name], with its registered/principal address at [Client Address] (the "Client").

The Company and the Client are each referred to individually as a "Party" and collectively as the "Parties".

RECITALS

WHEREAS, the Company is engaged in the business of designing, developing, hosting, and supporting software applications; and

WHEREAS, the Client wishes to engage the Company to develop, provide, and host the Application (as defined below) on the terms set out in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows:

1. The Application and Features

1.1 The Company shall design, build, host, and maintain a software application known as "[System / Application Name]" (the "Application") for the Client's use, in accordance with the specifications agreed between the Parties.

1.2 The Application shall include, at a minimum, the following features and functionality:

- [Feature 1 — e.g., user account management]
- [Feature 2 — e.g., booking / order management]
- [Feature 3 — e.g., admin dashboard and reporting]
- [Feature 4 — e.g., notifications]
- [Additional features to be listed/attached as Schedule A]

1.3 Branding. The Client shall supply the Company with its logo and brand colour code(s) for incorporation into the visual design of the Application. The Company shall apply the Client's branding as provided; the Company shall not be responsible for delays caused by late delivery of branding assets.

2. Fees and Payment Terms

2.1 Monthly Fee. In consideration of the Application and related services provided under this Agreement, the Client shall pay the Company a monthly fee of [AED/USD] 1,850.00 (the "Monthly Fee").

2.2 Payment Method and Due Date. The Monthly Fee shall be payable by cheque, submitted by the Client to the Company on or before the 1st calendar day of each month, in respect of that month's services.

2.3 Grace Period. The Company shall allow a grace period through the 5th calendar day of each month for receipt of the applicable month's payment. Payment received on or before the 5th day of the month shall be treated as timely. If payment is not received by the 5th day of the month, the Company reserves the right, at its discretion, to suspend access to the Application until payment is received in full, without prejudice to any other rights of the Company under this Agreement.

2.4 Non-Refundable. Except as expressly stated otherwise in this Agreement, all fees paid by the Client are non-refundable under any circumstances, including in the event of termination or cancellation by either Party.

3. Term

3.1 This Agreement shall commence on the Effective Date and shall continue on a month-to-month basis until terminated by either Party in accordance with Section 4 (Termination).

4. Termination

4.1 Termination for Convenience. Either Party may terminate this Agreement for any reason, without cause, by providing the other Party not less than thirty (30) days' prior written notice.

4.2 Client Discontinuation of Services. If the Client wishes to discontinue or stop the Services for any reason, the Client shall notify the Company in writing at least thirty (30) days in advance of the desired date of discontinuation. Services shall continue, and the Monthly Fee shall continue to accrue and be payable, during such notice period.

4.3 Effect of Non-Payment. The Company may terminate this Agreement immediately upon written notice if the Client fails to remit payment within the grace period described in Section 2.3 on two (2) or more occasions.

4.4 No Refunds on Termination. As set out in Section 2.4, amounts already paid by the Client are non-refundable upon termination or cancellation of this Agreement, regardless of which Party terminates or the reason for termination.

5. Effects of Termination / Expiration

5.1 No Source Code Handover. Under no circumstances — including upon termination, expiration, or non-renewal of this Agreement — shall the Company be obligated to hand over, transfer, license, or otherwise provide the Client with the source code, underlying architecture, or any proprietary technical materials of the Application. The Application, its source code, and all underlying technology remain the sole and exclusive property of the Company at all times.

5.2 Return of Client Materials. Following (a) the completion or termination of this Agreement, and (b) the conclusion of the hosting period referred to in Section 6, the Company shall compile and share with the Client the Client's own documents, data, and content held within the Application ("Client Materials"). Client Materials shall be provided in a reasonable format within a reasonable time following such completion or termination.

6. Hosting

6.1 The Company shall host the Application for the duration of this Agreement. All hosting-related costs and charges — including server, infrastructure, and associated maintenance costs — shall be borne solely by the Company, and shall not be separately billed to the Client unless otherwise agreed in writing.

7. Intellectual Property

7.1 The Company retains all right, title, and interest in and to the Application, including all source code, software, designs, and underlying technology, whether created before or during the term of this Agreement, save for the Client's own branding, logo, colour code, data, and content, which remain the property of the Client.

7.2 The Client grants the Company a limited, non-exclusive licence to use the Client's logo and brand colour code solely for the purpose of designing and operating the Application under this Agreement.

8. Confidentiality

8.1 Each Party agrees to keep confidential all non-public information disclosed by the other Party in connection with this Agreement, and not to disclose such information to any third party without the prior written consent of the disclosing Party, except as required by law.

9. Warranties and Disclaimer

9.1 The Company shall perform the services described in this Agreement with reasonable skill and care. Except as expressly stated in this Agreement, the Application is provided "as is" without warranties of any kind, whether express or implied.

10. Limitation of Liability

10.1 To the maximum extent permitted by applicable law, neither Party shall be liable to the other for any indirect, incidental, or consequential damages arising out of or in connection with this Agreement. The Company's total liability under this Agreement shall not exceed the total fees paid by the Client in the three (3) months preceding the claim.

11. Governing Law and Jurisdiction

11.1 This Agreement shall be governed by and construed in accordance with the laws of the United Arab Emirates. The Parties submit to the exclusive jurisdiction of the courts of the United Arab Emirates in respect of any dispute arising out of or in connection with this Agreement.

12. Notices

12.1 All notices under this Agreement shall be in writing and delivered by email or courier to the addresses set out above, or such other address as either Party may notify to the other in writing.

13. General

13.1 Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior discussions or agreements, whether written or oral.

13.2 Amendment. This Agreement may only be amended by a written instrument signed by both Parties.

13.3 Severability. If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

Signatures

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date first written above.

For and on behalf of Kynvera

For and on behalf of [Client Name]

Name:

Name:

Title:

Title:

Date:

Date: